IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT– II)

Item No. 301
CA(CAA)-19/ND/2024
CA-122/2024

IN THE MATTER OF:
Alliance Connect Ad Private Limited ... Applicant/Petitioner
and and Alliance Advertising
& Marketing Private Limited

Under Section: 230-232 Com. Act

Order delivered on 31.05.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ **SH. SUBRATA KUMAR DASH**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Applicant :

For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

IA-122/2024: The Ld. Counsel appearing for the Applicant contended that when the consent to the proposed Amalgamation Schemes by the Creditors was to the extent of 92.18% qua the transferor company and 98.76% qua the transferee company, the table reproduced in Para 10 of the order passed by this Tribunal on 15.04.2024 could contain the expression that the consent was given by all the unsecured creditors. In the wake, he has sought replacement of the aforementioned table with the table given in para 4(c) and prayer clause of the application. It is also espoused by the Ld. Counsel appearing for the Applicants that the sentence used in paragraph 11(II) viz. "in view of the No objection/Consent given by all of them" the expression "in view of the No objection/Consent given by requisite majority" need to be substituted. In view of the aforementioned submission made by the Ld. Counsel appearing for the Applicants, supported by the averments made in the CA, the order dated 15.04.2024 is directed to be rectified to the extent that the table referred to in Para 10 of the order shall be substituted by the table given in prayer 11(II) of the application and sentence used in first line of sub-para (I) of the Para 11 "No objection/consent accorded by all equity

shareholders" would be replaced by the no objection/consent given by the requisite percentage. **The application stands allowed** in terms of the prayer made therein.

Sd/-	**Sd/-**
(SUBRATA KUMAR DASH)	**(ASHOK KUMAR BHARDWAJ)**
MEMBER (T)	**MEMBER (J)**